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To the Minister of Education, Culture and Science
P.O. Box 16375
2500 BJ The Hague
Date
November 26, 2024
Our reference
z2024-010120
Contact person
Subject
Formal warning CABR
Dear Mr. Bruins,

The Central Archive for Special Jurisdiction (CABR) is the most consulted and largest archive regarding World War II in the Netherlands. This archive contains approximately 485,000 files of individuals suspected of collaboration with the occupier and/or prosecuted for this. The files contain many different types of documents such as reports, indictments, witness statements, records of court sessions, judgments, membership cards of National Socialist organizations, (personal) letters, photographs, and other materials that were used as evidence at the time. These documents contain (very) sensitive information, including information about living individuals. For example, personal data of a criminal nature of suspects of collaboration. But also special personal data of suspects and third parties, such as ethnicity, religious beliefs, political preferences, and sexual orientation. The National Archive is in the process of digitizing the CABR. It intends to gradually publish the CABR online for everyone starting January 2, 2025, and to make it fully text-searchable. This is part of the project War for the Judge.

With this letter, the Authority for Personal Data (AP) expresses its serious concerns to you regarding the intended manner of disclosure. These concerns are fundamentally:

- that it is highly likely that the intended manner of disclosure also pertains to ordinary personal data, special personal data, and personal data of a criminal nature of living individuals;
- that publishing ordinary personal data, special personal data, and personal data of a criminal nature in the intended manner is unlawful unless a specific legal exception has been made for this;
- that no such legal exception has been made on which this intended manner of disclosure can be based;
- that the publicly accessible online publication with digital full-text searchability could lead to significant privacy violations for living individuals involved;
- that there are other, less intrusive ways to achieve the accessibility of the CABR;
- that the measure allowing individuals to report the unlawful processing of their personal data to the National Archive does not eliminate the unlawfulness of the processing.

If the disclosure of the CABR is carried out in the intended manner, you will not comply with the requirements of the GDPR. Therefore, the AP issues a formal warning. The AP limits itself in this letter and with the warning to the intended manner of making the CABR digitally accessible. The AP refrains from making a judgment on the disclosure itself but focuses on the manner in which this is being implemented with the project War for the Judge.

1. Background

The National Archive manages the largest collection of archives in the Netherlands. The archives of the National Archive are generally public. However, there are restrictions on the public availability of

certain archival documents. These restrictions are regulated in Article 15, paragraph 1, of the Archives Act (Aw). In order to respect the privacy of living individuals, restrictions were placed on the public availability of the CABR when it was transferred to the National Archive in 2000. These apply retroactively for a period of 75 years and will expire in 2025. The National Archive has decided that from that moment on, the archive will not only be publicly available for request in the reading room of the National Archive but will also be digitized and made available online for everyone and fully text-searchable.

The AP sends you this letter fully aware that making the CABR accessible is a highly sensitive issue with significant societal implications. The AP is well aware that expectations have been raised among all stakeholders and the broader public regarding the accessibility of this archive after the expiration of the public availability restriction in 2025. In this context, the AP points out that the privacy risks addressed in this letter are not new facts for the National Archive. The National Archive has been warned about these risks multiple times and could have anticipated and prevented this intervention by the AP.

The National Archive has followed a lengthy deliberation process regarding the intended decision to publish the CABR online for everyone and to make it fully text-searchable. In this process,

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representatives of various stakeholders and other societal parties, such as an Ethical Council¹ involved. For example, the Foundation Working Group Recognition (SWH) was also represented in this Ethical Council. SWH is the organization that advocates for the interests of the relatives of suspects of collaboration with the German occupier. Additionally, the National Archive has received three legal opinions in the past two years that also addressed the privacy implications of the intended online publication of the CABR.² The AP notes that the National Archive has already been alerted in all three legal opinions, the first of which was issued in February 2022, to the risk of lacking a sufficient basis for the intended processing and the necessity of taking additional measures.

In the spring of 2024, the AP was alerted by a relative of someone whose file is part of the CABR regarding the possible illegality of the intended processing. This prompted the AP to contact the National Archive in April 2024. The National Archive provided several documents and indicated that an additional risk assessment would be conducted regarding the intended online publication. The AP received this risk assessment on August 8, 2024. Subsequently, on August 20, 2024, the National Archive announced which adjustments it would make in its procedures regarding the publication of the CABR to address the risks. In September and October 2024, the AP conducted an initial analysis of the planned online publication and the privacy risks arising from it. On October 21, 2024, at the request of the AP, a meeting took place between the AP, the National Archive, and the Ministry of Education, Culture and Science (hereinafter: OCW). On October 23, 2024, the AP requested further information from the National Archive. On October 24, 2024, the AP received this additional information. On November 5, 2024, another meeting took place between the AP, the National Archive, and the OCW ministry. Based on the information received, the AP is of the opinion that if this method of disclosure is carried out, it would constitute a violation of the GDPR. Below, it will be explained which provisions of the GDPR the intended method of disclosure would violate, and why.

2. The intended processing

As mentioned earlier, the confidentiality restriction of the CABR will expire on January 1, 2025. The National Archive has announced, among other things on its own website, that it intends to publish the digitized CABR online in stages, with the first scanned and machine-readable documents to be made available on February 2.

1 The Ethical Council includes:

- Foundation Working Group Recognition
- The Central Organization of Resistance Participants and Victims of Persecution (COVVS), an umbrella organization
- The Central Jewish Consultation (CJO) is represented by: Jewish Social Work (JMW)

2 The legal advice from Eiffel "Research CABR" (including DPIA) dated February 16, 2022, the "Advice BJZ-NA regarding the legal consequences of (online) availability of special or criminal personal data from the CABR" dated June 22, 2023, and the "Additional Risk Assessment regarding the online and text-searchable publication of the Central Archive of Special Jurisdiction (CABR)" by Prof. Dr. K.J.P.F.M. Jeurgens dated July 11, 2024.

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will be published online in January 2025. Documents that are made available online can be searched for any word (full-text), such as a name, place, event, or date, or a combination thereof. On October 21, 2024, the National Archive indicated in a conversation with the AP that only files of suspects or convicted individuals who are confirmed to be deceased will be made available online.

The National Archive holds the view that the CABR, as the most consulted war archive in the Netherlands, should be accessible to everyone, without any (physical) barriers. The National Archive emphasizes the significant societal importance of the disclosure of the CABR. There is broad interest in reconstruction and stories about World War II. As there are virtually no eyewitnesses left, heritage must tell the story, and openness of archives is important for the relatives, according to the National Archive. Furthermore, transparency is also beneficial for research and education about World War II and, in extension, for fostering awareness of the value of democracy, the rule of law, and human rights. Access to information is necessary to facilitate dialogue and processing of the past. Online publication is essential to reach young people. Additionally, online publication provides the opportunity to link the CABR to other (already digitized) war archives, thereby consolidating information. Moreover, online publication means that people do not have to physically visit the National Archive to consult the CABR, which proves to be a significant barrier for many, according to the National Archive.

The AP also recognizes the societal and historical importance of the CABR and understands the desire to make the archive more accessible. However, the manner in which the CABR is made accessible must comply with the law.

3. Intended publication likely unlawful

Article 14 of the Archives Act (Aw) stipulates that archival documents located in an archive repository that are no longer subject to restrictions on public access are public. Everyone is entitled, subject to the restrictions arising from Articles 15, 16, and 17 of the Aw, to consult these archival documents free of charge and to make or have made images, copies, extracts, and adaptations thereof at their own expense. This provision of the Aw can be seen as a basis in the sense of Article 6, first paragraph, introductory phrase and under e, of the General Data Protection Regulation (GDPR) to make personal data in the CABR available to everyone. However, it is a condition that the processing of personal data based on that basis is necessary.

The necessity requirement means that the principles of proportionality and subsidiarity must be met. The principle of proportionality implies that the infringement on the interests of the individuals involved in the processing of personal data must not be disproportionate in relation to the purpose served by the processing. According to the principle of subsidiarity, the purpose for which the processing is carried out must be necessary.

3 Article 6, first paragraph, introductory phrase and under e of the GDPR states: "Processing shall be lawful only if and to the extent that at least one of the following applies: e) processing is necessary for

the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.”

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personal data is provided in a manner that reasonably cannot be realized in a less detrimental way for the person involved in the processing of personal data.

The publicly accessible online publication and full-text digital searchability of the CABR goes beyond what is necessary to comply with Article 14 of the Archives Act (Aw). After all, this article only stipulates that archival documents for which there are no longer any restrictions on public access must be made public. Article 14 Aw does not prescribe that this public access must be fulfilled in the manner of the intended processing: making the CABR available online in a full-text digitally searchable format to everyone, where everyone has barrier-free access to the files in the CABR. This extensive form of availability is not standardly applied in other public archives. If this level of availability were necessary for the proper execution of the statutory task, then the National Archive would be failing in all those other cases.

This online disclosure of the CABR significantly increases the infringement on the protection of personal data compared to, for example, digital availability in the reading room of the National Archive. When personal data is published online, an unlimited number of internet users can consult, store, and disseminate this personal data. This infringement on the protection of personal data is even more pronounced when the documents available online are also full-text searchable, ultimately even for search engines. This method of making information public is considered a serious infringement on the protection of personal data of the individuals involved. It is important to note that the CABR contains a lot of sensitive information, which can provoke significant reactions and, in certain cases, pose a risk of stigmatization for those involved.

The processing of personal data in the execution of the statutory task of the National Archive is only lawful when the necessity requirement is met. Necessity is, after all, part of this processing basis under Article 6 of the General Data Protection Regulation (GDPR). When the necessity requirement is not met, the processing of personal data cannot be based on this legal basis. According to the opinion of the Dutch Data Protection Authority (AP), the intended processing likely goes further than what is necessary based on Article 14 Aw. Access to the documents can also be achieved in ways that make a less significant infringement on the fundamental rights of the individuals involved. This implies that the intended processing likely does not meet the necessity requirement and is therefore in violation of Article 6, paragraph 1, under e, GDPR. This applies to both the processing of ordinary personal data and the processing of special personal data and personal data of a criminal nature. The requirements of Article 6 GDPR must also be met for these last two categories.

4. Special personal data and personal data of a criminal nature

Special personal data

The documents in the CABR contain a lot of information about natural persons. When there is information that can be directly or indirectly traced back to living natural persons, there is a case of

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personal data within the meaning of the GDPR.⁴ The protection of natural persons in the processing of their personal data is a fundamental right.⁵ Special categories of personal data receive additional protection under the GDPR. These are personal data that are so sensitive to privacy that their

processing can have a significant impact on an individual. Special categories of personal data include, for example, data about a person's ethnic origin, political opinions, religious beliefs, sexual life, or health. The processing of special categories of personal data is prohibited unless an exception applies.⁶ The exceptions are regulated in Article 9, paragraph 2, of the GDPR. In this case, the exception based on overriding public interest may be applicable. This occurs when the processing is necessary for reasons of overriding public interest, based on Union law or national law, ensuring proportionality with the pursued objective, respecting the essential content of the right to the protection of personal data, and implementing appropriate and specific measures to protect the fundamental rights and interests of the data subject.⁷ This means that the processing prohibition in the GDPR is overridden if there is national law that complies with Article 9, paragraph 2, under g, of the GDPR, and that - among other things - provides for appropriate and specific measures to protect the interests of the data subjects.⁸ Currently, there is no such legal provision for making special categories of personal data available online to everyone in the CABR.⁹ Moreover, Article 2a, under d, of the Aw prohibits making special categories of personal data and criminal data available for consultation or use.¹⁰ This means that as long as and to the extent that special categories of personal data and criminal data are present in the CABR, it is unlawful to publish the CABR online for everyone and to make it fully text-searchable.

4 Article 4, introductory part and under 1, GDPR and Recital 27 of the GDPR.

5 Pursuant to Article 8, paragraph 1, of the Charter of Fundamental Rights of the European Union and Article 16, paragraph 1, of the Treaty on the Functioning of the European Union, everyone has the right to the protection of their personal data. The right to the protection of personal data is not absolute and must be weighed against other fundamental rights in accordance with the principle of proportionality (Recital 4 of the GDPR).

6 Article 9 GDPR.

7 Article 9, paragraph 2, under g, GDPR.

8 For all exceptions to the processing prohibition applicable to special categories of personal data, see Article 9 GDPR and Articles 22 to 30 of the UAVG.

9 Article 24 UAVG provides a separate regulation for scientific or historical research or statistical purposes.

10 Special categories of personal data and criminal data as referred to in section 3.1 and section 3.2 of the Implementation Act General Data Protection Regulation may be processed if that processing is related to:

- a. the replacement of archival documents referred to in Article 7;
- b. the transfer of archival documents to an archival storage facility referred to in Articles 12 and 13;
- c. the inclusion of archival documents as referred to in Article 1, under c, under 3°, in an archival storage facility; or
- d. the management of archival documents that are held in an archival storage facility, with the exception of making such archival documents available for consultation or use.

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Personal data of a criminal nature

The processing of personal data concerning criminal convictions and criminal offenses is also subject to extra strict rules under the GDPR. These data may only be processed under government supervision or, if the processing is permitted, under Union law or national provisions that provide appropriate safeguards for the rights and freedoms of the data subjects. Comprehensive registers of criminal convictions may only be maintained under government supervision. Articles 32 and 33 of the UAVG contain national legal exceptions, allowing for the processing of personal data of a criminal nature in certain situations. For example, if the data subject has given explicit consent for this, or if the

processing relates to personal data that has evidently been made public by the data subject. There is also a separate provision for scientific or historical research and statistical purposes. However, there is no national legal regulation based on which, in accordance with Article 10 of the GDPR, personal data of a criminal nature in the CABR files can be made accessible online and fully searchable in digital form for everyone.

Scope of personal data of a criminal nature

In the meeting between the AP, the National Archive, and the Ministry of Education, Culture and Science on October 21, it was discussed the scope of the concept of 'personal data of a criminal nature'. In particular, the question was raised whether in a criminal file of a suspect, every personal data of a third party mentioned therein should also be regarded as personal data of a criminal nature of that third party. The AP is pleased to clarify the scope of the concept of 'personal data of a criminal nature'.

It is not the case that every person mentioned in a criminal file is considered to have personal data of a criminal nature. The concept of 'personal data concerning criminal convictions and criminal offenses' in the sense of Article 10 of the GDPR is a Union law concept that must be interpreted autonomously. The GDPR does not allow member states to provide their own, broader interpretation of this concept. The data must be sufficiently established to be considered personal data of a criminal nature.

Established case law states that there must be "such concrete facts and circumstances that they can support a conviction qualifying as a criminal offense - in the sense of Article 350 of the Code of Criminal Procedure." A mere isolated suspicion or

11 Article 10 GDPR.

12 Article 32 introductory clause and under a UAVG.

13 Article 32 introductory clause and under c UAVG.

14 Article 32 introductory clause and under f GDPR.

15 See for the situations in which criminal personal data may be processed Article 10 GDPR and the exceptions mentioned in Articles 32 and 33 UAVG.

16 Court of The Hague December 24, 2019, ECLI:NL:GHDHA:2019:3539.

17 HR May 25, 2009, ECLI:NL:HR:2009:BH4720, RvdW 2009/663, NJ 2009/243, NJB 2009/1150, JWB 2009/186.

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a mere accusation of criminal behavior is therefore not sufficient. The legislative history and case law provide sufficient indications that it must concern proven facts, or well-founded suspicions, meaning suspicions that are substantiated with concrete, sufficiently weighty indications that a particular person has committed criminal behavior.¹⁸

It follows that it may vary from case to case whether the personal data of individuals other than the suspect, concerning whom the criminal file has been compiled, should be regarded as personal data of a criminal nature in the sense of Article 10 of the GDPR.¹⁹

Special personal data and criminal personal data of other parties involved

The protection of the GDPR only applies to living natural persons. The stricter rules of the GDPR for the processing of special personal data and personal data of a criminal nature also only apply if these data can be traced back to living natural persons. The National Archive has indicated that it will only make files of deceased natural persons available online to everyone. However, the AP understands that the files often also contain information about others. From the DPIA conducted by Eiffel, the additional risk assessment, the conversation on October 21, 2024, and the website about the CABR of the National Archive, it emerges that the files regularly contain special and criminal data about other parties involved than the one for whom the file was created. If searches have been conducted at the

homes of suspects for whom a file has been created, various documents may have been seized and added to the file. For example, diaries or letters may be present in the files, or statements from doctors. The files may contain information about third parties, such as information about NSB membership, or there may be witness statements in the file describing that third parties have committed criminal offenses. If these third parties are still alive, and there are special personal data or personal data of a criminal nature in the CABR concerning them, then the provisions of the GDPR relating to these categories of personal data also apply to these third parties. It is therefore insufficient to merely establish that the person for whom the file was compiled has passed away. This does not sufficiently address an infringement on the protection of personal data of other parties involved than the one for whom a file has been compiled.

Conclusion on special personal data and data of a criminal nature

In light of the above, a processing prohibition applies in this case for special personal data. Furthermore, the intended manner of disclosure of personal data of a criminal nature is not in line with Article 10 GDPR. It is important to note that the National Archive does not intend to request explicit consent from any living parties involved for the publication of special personal data and personal data of a criminal nature concerning them, nor to ascertain on a case-by-case basis whether the information in the CABR has previously been made public by a (still living) party involved in question.

18 See Court of Amsterdam, November 22, 2011, ECLI:NL:GHAMS:2011:BU6226; Court of Rotterdam, January 2020, ECLI:NL:RBROT:2020:211; Court of Amsterdam, March 22, 2018, ECLI:NL:RBAMS:2018:3357.

19 See also conclusion A-G Szpunar of December 17, 2020, in Latvijas Republikas Saeima (C-439/19), para. 85.

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has been made. The AP also understands that the National Archive is neither intending nor able to assess on a document-by-document and case-by-case basis whether or not there are special personal data or personal data of a criminal nature (of still living persons) to subsequently remove or shield these prior to publication. All of this makes it likely that the intended processing is in violation of Articles 9 and 10 of the GDPR.

****5. Statistical Basis and Identifiability****

In the decision of the General State Archivist and in the underlying documents, reference is made at certain points to the statistical probability that the individuals involved are still alive and the statistical probability that their personal data appear in the files. The AP notes that this statistical consideration does not align well with the GDPR and cannot be presented as a valid reason to legitimize an infringement on the protection of personal data of still living individuals. Relevant from a GDPR perspective is solely the observation that a portion of the people appearing in the files are still alive. The GDPR indeed provides protection to every natural person who is still living and whose personal data is being processed.

Furthermore, it emerged from the documents and during the conversation with the National Archive that the National Archive assumes that the GDPR would not apply to still living persons whose date of birth is missing from the archive. According to the National Archive, these individuals would then not be identifiable. The AP points out that this interpretation of the concept of personal data is incorrect. Identifiability can indeed occur in many ways. A date of birth is not always necessary to identify someone. For example, consider individuals with a rare surname or individuals from families that have lived for generations in a small community. Information from the CABR can be traceable to individuals who are named in the documents, but even to people whose names are not mentioned, but from

whose context it can be inferred who they are.

****6. Creating a Legal Basis****

The AP is aware that proposals for a new archival law and a new archival decree are in process. However, this proposed new legislation does not permit the intended manner of disclosure of the CABR by the National Archive.

Recital 158 of the GDPR states: "Member States must also be empowered to provide that personal data may be further processed for archiving purposes, for example, with a view to providing specific information about political behavior under former totalitarian regimes, about genocide, crimes against humanity, in particular the Holocaust, or about war crimes." This recital explicitly allows European member states to provide legislation that enables the provision of information about war crimes and the Holocaust, also...

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when it concerns personal data of a criminal nature and special personal data. So far, the Dutch legislator has not made use of this possibility. In order to enable further disclosure of the CABR than is currently permitted under the GDPR and the Archiefwet, the legislator could choose to implement this possibility provided by the GDPR and amend the Archiefwet. In this way, democratically legitimized choices can be made regarding how to handle the disclosure of this special, important, and sensitive archive.

7. Absence of DPO Advice and Prior Consultation

The AP has noted that advice from the Data Protection Officer (DPO) regarding the intended processing is missing. Under the GDPR, a data controller is required to seek DPO advice when conducting a DPIA. Given the volume and complexity of the GDPR issues concerning (the disclosure of) archives, the AP advises the Minister of OCW to provide more capacity and resources to carry out the DPO tasks for the National Archive. Under Article 38, paragraph 2, GDPR, the Minister is obliged to provide the necessary resources for fulfilling the DPO tasks.

Furthermore, the National Archive has not submitted a request for Prior Consultation to the AP. If there is an intended processing for which the high residual risks cannot be mitigated by measures, a Prior Consultation with the AP is mandatory.

8. Imposing a Formal Warning

The AP has the authority to warn a data controller or processor that an intended processing is likely to infringe provisions of the GDPR. The website of the National Archive announces that the digitized CABR will be made available online in phases, starting January 2, 2025. A lengthy decision-making process has taken place during which legal advice was provided to the National Archive, highlighting the same risks that now prompt the AP to issue a formal warning. The AP observes that these advices have not deterred the National Archive from the intended method of disclosure. This indicates that it is likely that (parts of) the CABR will indeed be made fully text-searchable and available online to everyone if the AP does not exercise its powers. This circumstance, combined with the assessment that this method of publication is likely to lead to a breach of the GDPR, legitimizes the use of the authority to impose a formal warning. It is also relevant that the potential consequences for the individuals involved could be very significant. For this reason, the AP issues a formal warning to the Minister of OCW, as the data controller, not to proceed with the online publication and full-text digital searchability of the CABR.

The AP notes that if the intended processing is nonetheless pursued, the AP may initiate a supervisory investigation and proceed to enforcement. The AP also points out that in the case of unlawful online publication, the Ministry of OCW may be held liable for material or immaterial damages suffered by

living individuals due to that publication.

This imposed warning is not a decision under the General Administrative Law Act. Filing an objection against the warning is not possible.

The AP is always willing to further explain the content of this letter in a conversation. The AP requests that you inform them shortly about how this warning will be followed up, especially considering the intended date of online publication of the CABR.

A copy of this letter will be sent to the DPO of the Ministry of OCW and to the National Archive.

Yours sincerely,
Dutch Data Protection Authority,
Aleid Wolfsen
Chairman